

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HEATHER LYNN RODRIGUEZ,

Petitioner

VS.

DANIEL RODRIGUEZ,

Respondent

) Case Number: FDI-24-800165

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER COMPELLING FUTHER DISCOVERY RESPONSES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Heather Rodriguez (Wife) and Respondent Daniel Rodriguez (Husband). The parties married on 6/25/2021 and separated on 8/21/2024, for a marriage of 3 years and 2 months. The parties have no minor children. Wife is self-represented. Husband is represented by attorney Jonathan Piper.
- 2) On 10/3/2025, in related Case No. FDV-25-818643, the Court issued a 5-Year Restraining Order After Hearing for Wife's protection against Husband. The restraining order expires on 10/3/2030.
- 3) The Court notes that at a hearing on 10/23/2025 (per the Findings and Order After Hearing filed 11/12/2025), the Court adjudicated Wife's request for spousal support filed 9/17/2025. Wife's request was based on a Marital Settlement Agreement (MSA) the parties signed in September 2024. The MSA is attached to Wife's 9/17/2025 Request for Order appears to be a global settlement agreement resolving all issues in the parties' case. The MSA requires Husband to pay Wife \$2,500 in monthly spousal support from 10/1/2024 to 10/1/2026. Wife stated Husband paid spousal support to her of a period of one year and then suddenly stopped. Husband stated he only

1 signed the MSA to get Wife to agree to reconcile the relationship and because he felt pressure and
2 duress to sign the MSA. Husband also stated that the agreement “went beyond the spousal
3 support amounts called for under the law, both in amount and length.” Following the hearing,
4 Judge Pro Tem Marjorie Slabach ordered Husband to pay Wife \$2,500 per month because “the
5 MSA is a contract signed by both parties which is enforceable, unless or until it is set-aside or
6 modified.”

7 4) Now on for hearing is Husband’s Request for Order filed 1/20/2026 asking the Court to compel
8 Wife to provide proper responses to his previously served Form Interrogatories – Family Law,
9 Set One. Husband also seeks sanctions in the amount of \$2,420 under Code of Civil Procedure
10 section 2023.010. Husband states the Form Interrogatories were served by email on Wife on
11 9/23/2025. Wife stated she did not consent to email service and so Wife was re-served with the
12 Form Interrogatories on 11/3/2025. Wife served a response on 12/4/2025 which Husband states
13 contained objections to every single interrogatory. On 12/10/2025, Husband’s attorney served a
14 meet and confer letter. Wife asked what information was needed and offered to work informally
15 to provide the requested information. Husband’s attorney informed Wife that the information
16 requested is what is set forth in the Form Interrogatories. Wife replied, “[y]ou have not made a
17 good faith meet and confer. As such, I maintain my objections.” Husband’s attorney states he is
18 unable to effectively prepare for trial without Wife’s responses.

19 5) Husband attached to his Request for Order a copy of Wife’s Responses to Form Interrogatories.
20 The Court notes the following responses by Wife below:

21 a. **Interrogatory 1:** Requests Wife’s full name and other names used, current residence and
22 work address, and social security number. Wife objects because the request is irrelevant,
23 oppressive, harassing, and unduly burdensome and because this information is protected
24 by the DVRO.

25 b. **Interrogatory 2:** Requests information about and copies of any oral or written
26 agreements related to assets, debts, or support made between the parties during marriage
27 or after separation. Wife objects because the information is already in the possession of
28 the propounding party and as such the interrogatory is irrelevant, oppressive, harassing,
29 unduly burdensome, and not likely lead to the discovery of admissible evidence and

1 because “there is a marital settlement agreement that was upheld in court on October 23,
2 2025.”

3 c. **Interrogatory 3:** Asks whether Wife is a party or anticipates being a party to any legal or
4 administrative proceeding other than this action? Wife objects because the interrogatory
5 is irrelevant, oppressive, harassing, unduly burdensome, and not likely to lead to the
6 discovery of admissible evidence and because this information is protected by the
7 DVRO.

8 d. **Interrogatory 4:** Asks Wife to state the name, age, and relationship of any persons
9 sharing a residence with Wife. Wife objects because the interrogatory is irrelevant,
10 oppressive, harassing, and unduly burdensome and not likely to lead to the discovery of
11 admissible evidence, because there is an MSA “that was upheld in court on October 23,
12 2025,” and because this information is protected by the DVRO.

13 e. **Interrogatory 5:** Asks Wife to state the name, age, address, and relationship of each
14 person for whom Wife has provided support during the past 12 months and the amount
15 provided per month. Wife objects because the interrogatory is irrelevant, oppressive,
16 harassing, and unduly burdensome and because this information is protected by the
17 DVRO.

18 f. **Interrogatory 6:** Asks Wife to state the name, age, address, and relationship to Wife of
19 each person for whom Wife has received support during the past 12 months and the
20 amount received per month. Wife objects because the interrogatory is irrelevant,
21 oppressive, harassing, and unduly burdensome and not likely to lead to the discovery of
22 admissible evidence, because there is an MSA “that was upheld in court on October 23,
23 2025,” and because this information is protected by the DVRO.

24 g. **Interrogatory 7:** Asks Wife to list all income she received during the past 12 months, its
25 source, the basis for its computation, the total amount, and Wife’s last three paycheck
26 stubs. Wife objects because the interrogatory is irrelevant, oppressive, harassing, and
27 unduly burdensome and not likely to lead to the discovery of admissible evidence,
28 because there is an MSA “that was upheld in court on October 23, 2025,” and because
29 this information is protected by the DVRO.

- 1 h. **Interrogatory 8:** Asks Wife to state whether she has received cash or other property
2 from any source not identified in Item 7. Wife objects because the interrogatory is
3 irrelevant, oppressive, harassing, and unduly burdensome and not likely to lead to the
4 discovery of admissible evidence, because there is an MSA “that was upheld in court on
5 October 23, 2025.”
- 6 i. **Interrogatory 9:** Asks Wife to attach copies of all tax returns and tax schedules filed by
7 Wife or for Wife in any jurisdiction for the past three calendar years. Wife objects
8 because this information is already in Husband’s possession because tax returns filed
9 2021 – 2024 were filed jointly by Husband.
- 10 j. **Interrogatory 10:** Asks Wife to complete a Schedule of Assets and Debts. Wife objects
11 because she states she already served her Schedule of Assets and Debts on 8/11/2025.
- 12 k. **Interrogatory 11:** Asks Wife to state facts that support her contention that an asset or
13 debt is separate property. Wife objects because this information is already in Husband’s
14 possession and because the interrogatory is irrelevant, oppressive, harassing, and unduly
15 burdensome and not likely to lead to the discovery of admissible evidence, because there
16 is an MSA “that was upheld in court on October 23, 2025.”
- 17 l. **Interrogatory 12:** Asks Wife whether she has received written offers to purchase or had
18 written appraisals of any assets listed in her Schedule of Assets and Debts during the past
19 12 months. Wife objects because this information is already in Husband’s possession and
20 because the interrogatory is irrelevant, oppressive, harassing, and unduly burdensome and
21 not likely to lead to the discovery of admissible evidence, because there is an MSA “that
22 was upheld in court on October 23, 2025.”
- 23 m. **Interrogatory 13:** Asks Wife whether there is any property held by any third party in
24 which she has an interest or over which she has control. Wife objects because this
25 information is already in Husband’s possession and because the interrogatory is
26 irrelevant, oppressive, harassing, and unduly burdensome and not likely to lead to the
27 discovery of admissible evidence, because there is an MSA “that was upheld in court on
28 October 23, 2025.”
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- 1 n. **Interrogatory 14:** Asks Wife whether she has an interest in any disability, retirement,
2 profit-sharing, or deferred compensation plan. Wife objects because this information is
3 already in Husband's possession and because the interrogatory is irrelevant, oppressive,
4 harassing, and unduly burdensome and not likely to lead to the discovery of admissible
5 evidence, because there is an MSA "that was upheld in court on October 23, 2025."
- 6 o. **Interrogatory 15:** Asks Wife whether she claims the legal right to be reimbursed for any
7 expenditures of separate and community property. Wife objects because this information
8 is already in Husband's possession and because the interrogatory is irrelevant,
9 oppressive, harassing, and unduly burdensome and not likely to lead to the discovery of
10 admissible evidence, because there is an MSA "that was upheld in court on October 23,
11 2025."
- 12 p. **Interrogatory 16:** Asks Wife if she has claimed reimbursement credits for payments of
13 community debts since date of separation. Wife objects because this information is
14 already in Husband's possession and because the interrogatory is irrelevant, oppressive,
15 harassing, and unduly burdensome and not likely to lead to the discovery of admissible
16 evidence, because there is an MSA "that was upheld in court on October 23, 2025."
- 17 q. **Interrogatory 17:** Asks Wife to identify each health, life, automobile, and disability
18 insurance policy or plan that she now owns or covers Wife or her assets. Wife objects
19 because this information is already in Husband's possession and because the
20 interrogatory is irrelevant, oppressive, harassing, and unduly burdensome and not likely
21 to lead to the discovery of admissible evidence, because there is an MSA "that was
22 upheld in court on October 23, 2025."
- 23 r. **Interrogatory 18:** Asks Wife to identify if there are any physical or emotional conditions
24 that limit her ability to work. Wife objects because this information is already in
25 Husband's possession and because the interrogatory is irrelevant, oppressive, harassing,
26 and unduly burdensome and not likely to lead to the discovery of admissible evidence,
27 because there is an MSA "that was upheld in court on October 23, 2025."
- 28 s. **Interrogatory 21:** Asks Wife to list any gifts she made without the consent of Husband
29 in the past 24 months. Wife objects because the interrogatory is irrelevant, oppressive,

1 harassing, and unduly burdensome and not likely to lead to the discovery of admissible
2 evidence, because there is an MSA “that was upheld in court on October 23, 2025.”

3 6) The prior 3/20/2026 hearing was continued to 5/14/2026 because the parties did not stipulate to
4 Commissioner Rahim making orders at the 3/20/2026 hearing.

5 7) On 4/22/2026, Husband filed a Notice of Stay of Proceedings. Husband attached a Notice of
6 Chapter 7 Bankruptcy Case filed 3/10/2026.

7 8) Wife has filed no pleadings responding to Husband’s Request for Order filed 1/20/2026.

8 **B. Findings and Order**

9 1) 11 United States Code section 362(b)(2)(A)(iv) (which applies to Chapter 7 bankruptcy cases)
10 provides: “(b)The filing of a petition under section 301, 302, or 303 of this title, or of an
11 application under section 5(a)(3) of the Securities Investor Protection Act of 1970, does not
12 operate as a stay —...(2) under subsection ((A) of the commencement or continuation of a civil
13 action or proceeding (iv) for the dissolution of a marriage, except to the extent that such
14 proceeding seeks to determine the division of property that is property of the estate....”

15 2) The Court finds Husband’s motion to compel further responses to Form Interrogatories – Family
16 Law, Set One does not constitute a proceeding seeking “to determine the division of property that
17 is property of the estate” within the meaning of 11 United States Code section 362(b)(2)(A)(iv).
18 Accordingly, the Court finds the bankruptcy stay does not preclude this Court from ruling on
19 Husband’s motion to compel.

20 3) Husband failed to file a Separate Statement with his motion to compel as required by California
21 Rules of Court, rule 3.1345(c). The Court could deny the motion on that basis alone, but the
22 Court will instead make an order on the merits of the motion. The Court finds Husband has not
23 established good cause for further responses at this time given that the parties have already
24 entered into a global settlement agreement and there are currently no financial or property-related
25 requests pending before this Court. The motion to compel further responses is denied.

26 4) The Court will prepare the Findings and Order After Hearing.
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